



Special Considerations and Reasonable Adjustments Policy

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Version Control			
Previous Version	New Version	Date	Update/Notes
V2 01-04-25	V3	14-04-26	Annual review. The Policy has been rewritten to ensure the policy provides a more detailed description of students with disabilities and special educational needs and the processes at TEC for supporting them from disclosure to outcomes.
V3 14-04-26	V4	05-09-26	Updated email .ac.uk.

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1. Introduction

Trent Education Centre (TEC) is committed to treating all students equitably so that they can succeed academically regardless of a disability or special learning difficulty they may have which might affect their performance. To ensure that all students have access to the same opportunities and are not disadvantaged, TEC makes special considerations and reasonable adjustments wherever required and possible. In doing this TEC ensures that it acts in accordance with its legal obligations under the 2010 Equality Act, which includes disability as one of the protected characteristics. TEC also acts in accordance with the Office for Students B2 Condition on Resources, Support and Student Engagement, which requires the provision of resources and support to ensure that students succeed. TEC also acts in accordance with UK Quality Code (June 2024) Core Practice 3: Support for Students by ensuring the 'all students, including those with disabilities, have access to the support they need to succeed.' TEC that providing special considerations and reasonable adjustments for students with a disability or special need is required under the Equality Act (2010).

This policy can be made available in alternative formats, including large print, audio, and digital accessible versions, on request. TEC is committed to ensuring that all students can access policy information in a format that meets their needs.

2. Purpose and Scope

This policy applies to all students and applicants intending to study at any level in any of TEC's Study Centres across the UK. It includes students studying further education courses from Entry Level to Level 3, English language courses, and higher education courses such as HND and ATHE Level 5 courses in Business and Management. This policy is for students who have any disability or special educational need in order to have the same opportunities to study as all other students.

See Appendix A for a list of various disabilities and learning difficulties that may require special consideration and reasonable adjustments to be made for the individual students concerned.

This policy supports TEC's compliance with Office for Students (OfS) Condition B2 (Resources, Support and Student Engagement) and OfS Condition B4 (Assessment) by ensuring that students with disabilities and special educational needs receive appropriate support without compromising academic standards. It also ensures that TEC meets OfS expectations for accessible, inclusive, and student-centred support processes that enable all students to succeed regardless of disability or special educational need.

3. Aims and Objectives

TEC aims to ensure that TEC has robust systems and resources in place to ensure that students with disabilities or special needs are provided with all the support they need to succeed in their education at TEC and beyond. To meet this aim TEC has processes that meet the following objectives:

- Provide an inclusive environment that encourages students to declare a disability or special education need when they apply for a course and whilst studying so they can get the support they require
- Raise awareness of the benefits and protections provided when students make a disclosure
- Conduct periodic needs analysis and reviews of individual students during personal tutorials
- Make arrangements and reasonable adjustments that take account of disadvantages faced by students with disabilities or special needs within the parameters set by the relevant awarding body or organisation
- Refer students who disclose disabilities or special needs to appropriate services including the TEC Counsellor and Head of Safeguarding
- The Head of Safeguarding monitors and reviews the quality of services provided to students with disabilities and reports on this to the Academic Board
- Encourage initiatives aimed at increasing the engagement of students with disabilities or special education needs.
- Follow the 0-25 SEND Code of Practice when working with people below 26 years of age
- Ensure that students with disabilities and special educational needs are actively engaged in shaping the support they receive, including through structured feedback, consultation opportunities, and participation in policy evaluation activities, in line with OfS Condition B2 expectations on student engagement.

4. Key Terms

4.1. Disability

According to the Equality Act 2010, a person is disabled if:

‘They have a physical or mental impairment which has a substantial and long-term adverse effect on their ability to carry out normal day-to-day activities.’

Substantial is measured by the impact an impairment has on the ability of the person to carry out routine activities. **Long-term** under the Equality Act 2010 refers to something lasting 12 months or more or recurring.

TEC encourages disabled applicants and students to disclose their disability so that we can provide support where needed including additional equipment and resources. TEC aims to attain Office for Students and run designated courses. Students with disabilities on designated courses may also be eligible for the Disabled Student Allowance (DSA) and TEC aims to support and guide students who wish to apply for this.

4.2. Special Educational Needs (SEN)

A Special Educational Need (SEN) tends not to be a diagnosed condition but refers to something a person needs to support their learning, which is different to the support that others need. According to the Children and Families Act 2014 – Section 20(1), a person has Special Educational Needs if:

‘They have a learning difficulty or disability which calls for special educational provision to be made for them.’

See Appendix A for a table of list of diverse Special Educational Needs and Disabilities (SEND). TEC ensures that key admissions and support staff receive training for supporting students with a range of special educational needs and disabilities and has a dedicated Head of Health and Safety and Safeguarding who is a trained counsellor.

4.3. Special Considerations

The Joint Council for Qualifications (JCQ), the national body that regulates exams including setting the rules for special considerations and reasonable adjustments, defines ‘special considerations’ as:

‘A post-assessment adjustment to a candidate’s mark or grade to reflect temporary illness, injury or other indisposition at the time of the assessment.’

This refers to adjusting grades if there is evidence that a student was placed at a disadvantage when completing an exam or assessment due to their condition at the time of the exam or submission deadline. For further details see the JCQ Guide to the Special Consideration Process, 2024/25.

Students who wish to request Special Considerations will need to complete the **TEC Mitigating Circumstances Form** on the TEC website. Alternatively, students can use the **Mitigating Circumstances Form** in Appendix A of the **TEC Assessment Policy** and email it to mitcircs@trenteduction.ac.uk. Such requests will be considered by the Programme Leader and the Head of Safeguarding. The Executive Principal may be asked to rule if the Programme Leader and Head of Safeguarding are unable to agree about a particular student’s request.

4.4. Reasonable Adjustments

As stated in the Equality Act 2010, Section 20, providers of education are required to make reasonable adjustments for students with disabilities to avoid discrimination. This duty involves:

‘Taking such steps as it is reasonable to have to take to avoid the disadvantage.’

Reasonable adjustments include all adaptations and modifications that can be implemented to ensure that SEND students are able to access the same learning and assessment opportunities and all other students.

4.5. Access Arrangements

Access arrangements are the reasonable adjustments that are made to meet the needs of SEND students before they do an assessment or sit an exam. According to JCQ, access arrangements are:

'Adjustments made before exams, based on evidence of need and how a student normally works. These arrangements help students with special educational needs, disabilities, or temporary injuries to access assessments without changing what is being tested.'

The TEC Programme Leader or nominee will obtain approval from the relevant awarding body or awarding organisation if access arrangements are considered before implementing those arrangements for a student being assessed or sitting an examination. These approved arrangements will be recorded in the relevant TEC Assessment Board minutes and reported by the Assessment Board to the Academic Board for noting.

5. Staff Training

TEC ensures that all staff involved in admissions, teaching, assessment, safeguarding, and student support receive regular training on disability awareness, reasonable adjustments, special considerations, and inclusive practice. Training is refreshed annually and monitored by the Head of Health and Safety and Safeguarding to ensure consistency, accuracy and alignment with current legislation, awarding-body requirements, and OfS expectations. Records of staff training are maintained for audit and quality assurance purposes.

6. SEND Support Process

The following information provides a breakdown of the steps taken to support students who disclose a disability or special educational need.

6.1. Making a Disclosure

If a student discloses a disability or special educational need to a member of staff, from the admissions team to the student's personal tutor, they will be referred to TEC's Head of Health and Safety and Safeguarding and the relevant Programme Leader.

6.2. Reasonable Adjustments Panel

The Programme Leader and the Head of Health and Safety and Safeguarding will form the **Reasonable Adjustments Panel (RAP)** which includes the following members:

- Programme Leader (Chair)
- Head of Health and Safety and Safeguarding
- The Student's Personal Tutor

6.3. Reasonable Adjustments Assessment

RAP will conduct, or nominate a student support officer to conduct, an assessment of the student's needs in relation to their learning, assessments and examinations and provide a **Reasonable Adjustments Assessment** of the student with **Recommendations** to the Executive Principal who chairs the Academic Board. RAP may refer a student to external professionals and may seek specialist advice before making a decision regarding the reasonable adjustments needed for a student and the support available. RAP will ensure that if a student discloses a **Health and Care Plan** that it is stored securely and fully adhered to and that relevant professionals are consulted.

If there are any cost implications above any allocated budget, RAP will seek approval from the Senior Management Team (SMT). The Academic Board and SMT will agree upon what can be done to provide students with appropriate equipment and resources within reasonable limits.

The Academic Board and SMT will use the following criteria for determining what is reasonable in the circumstances to support the SEND student(s):

- Academic standards must not be compromised through the introduction of a reasonable adjustment. The assessment criteria for any learning outcome may not be adjusted, and the students may not be exempted from meeting any of the assessment criteria required to achieve a particular grade as a result of reasonable adjustments.
- The method of teaching, learning and assessment, the time permitted to complete an assignment, assessment or examination, the equipment and resources included human resources provided for the assessment or examination may be adjusted to meet the particular SEND requirements of individual students.
- Students may be granted more flexibility with their attendance and punctuality, periods of absence, and engagement due to their disability or special educational needs.
- Any adjustments will be limited to the funds that TEC has available to meet the costs that may be incurred. As noted above, the Executive Principal requires approval from the SMT if the Academic Board wishes to spend more than the allocated budget for reasonable adjustments.
- The Head of Health and Safety and Safeguarding and other TEC support staff, reporting to the Academic Board, will explore the availability of grants to support SEND students, such as the DSA for students on designated courses.
- Reasonable adjustments must be practical and not include placing unrealistic demands upon TEC staff and students.
- The health and safety of all students and staff is paramount and must not be compromised by any adjustments made.

6.4. Outcomes

The Executive Principal will inform RAP if the **Reasonable Adjustments Assessment with Recommendations** is approved. The decision on whether the costs for reasonable adjustments are approved will be passed by the SMT to RAP, which will make any recommended purchases and adjustments and offer the SEND student the additional support they need to study at TEC. Staff who work with the student will also be informed and provided with any guidance and training they need to ensure the student gets the support they need.

TEC is committed to providing timely and transparent decisions for students requesting reasonable adjustments or special considerations and will aim to comply with the following service standards and timescales:

Outcome	Standards and timescales
Acknowledgement of disclosure or request	Within 3 working days
RAP assessment and recommendation	Within 10 working days or receiving the disclosure
Notification of decision to student	Within 5 working days of RAP approval
Submission of access arrangement applications to awarding bodies or organisations	Within the awarding body or organisation's published deadlines

TEC is committed to ensuring that all communication regarding reasonable adjustments and special considerations is clear, timely and accessible. Students will receive information in plain English and, where required, in alternative formats such as large print, audio or digital accessible versions. TEC will provide proactive updates on the progress of requests and decisions.

7. Assessments and Examinations

TEC ensures that reasonable adjustments, access arrangements, and special considerations do not compromise academic standards or the validity of assessments. Adjustments relate only to the *mode* of assessment, not the *learning outcomes* or academic requirements. This approach is consistent with OfS Condition B4, which requires providers to ensure that assessments are valid, reliable and maintain academic standards.

When conducting assessments or examinations, TEC is conscious of its obligations to make special considerations and access arrangements for SEND students, where necessary and practicable, under the Equalities Act 2010 and the Disability Discrimination Act 2005.

If **access arrangements** are approved by the Executive Principal to support the student with an assessment or examination, the Programme Leader or nominee will request approval from the relevant awarding organisation or body. Once approved, the Programme Leader will prepare an **Access Arrangements Report** that will be passed to the student's assessor, exams officer and/or invigilator before an assessment or exam so that the access arrangements that have been approved may be implemented.

It is the nominated Exams Officer's duty to ensure that students with special needs or disabilities have access to appropriate rooms and equipment as stipulated in the access arrangements report. If necessary, assessors/examiners may offer candidates a private room to take an exam and will be supervised by the Exam officer.

8. Specific Pearson Conditions and Justifiable Adjustments

When a student faces a significant disadvantage in an assessment due to a disability or difficulty, reasonable adjustments can lessen those impacts.

Reasonable adjustments (access arrangements) must not compromise the validity of the assessment results. Students must not be provided with an unfair advantage compared other students who are submitting the same assessment or sitting the same examination.

At the pre-assessment planning stage, reasonable adjustments should be agreed with the student; these should be designed to mirror the student's "normal" work style at TEC or their occupational context.

The RA1 form in the link below should be completed and retained in the student's file for future Pearson inspections upon request if applying a reasonable adjustment.

<https://qualifications.pearson.com/en/support/support-topics/exams/special-requirements/reasonable-adjustment.html>

For further details refer to the Pearson [Reasonable Adjustment and Special consideration Provisions for Edexcel Vocational Qualifications](#)

9. Complaints

Students who are dissatisfied with decisions relating to reasonable adjustments, access arrangements or special considerations may submit a complaint through the TEC Complaints Policy on the TEC website. Once TEC is registered with the Office for Students, Higher Education students may also escalate eligible complaints to the Office of the Independent Adjudicator (OIA) once internal procedures have been exhausted.

10.Data Protection and Confidentiality

TEC processes personal data in accordance with the **UK General Data Protection Regulation (UK GDPR)** and the **Data Protection Act 2018**. Information relating to a student's disability or special educational needs is classified as *special category data* and is handled with strict confidentiality.

TEC will only share information with relevant staff, external partners, or awarding organisations where the student has provided explicit consent, unless there is a safeguarding or legal requirement to disclose.

Students are encouraged to disclose disabilities or special educational needs so that TEC can provide appropriate support. Lack of disclosure may limit the adjustments TEC is able to implement.

TEC maintains a full audit trail of all decisions relating to reasonable adjustments, access arrangements, and special considerations. This includes evidence of need, RAP recommendations, approvals, communications with awarding bodies, and implementation records. All documentation is stored securely in accordance with UK GDPR and the Data Protection Act 2018 and retained for the period required by awarding organisations, OfS conditions and TEC's internal quality assurance framework. These records ensure transparency, consistency and regulatory compliance and support future audits or external reviews.

11.Monitoring Effectiveness

TEC will monitor the effectiveness of reasonable adjustments, access arrangements, and special considerations to ensure that students with disabilities and special educational needs receive appropriate and effective support. The Senior Management Team will appoint a reviewer to conduct an annual evidenced-based review of the effectiveness of the reasonable adjustments process from disclosure to outcomes. The reviewer will compile input from staff members who are points of contact for SEND students such as Admissions Offices, Safeguarding Officers, Tutors, and Student Support Officers for their feedback. The Reviewer will also:

- Review SEND student outcomes including progression, completion, and withdrawal data
- Collect feedback from students who receive adjustments or special considerations
- Audit Reasonable Adjustments Panel (RAP) decisions for consistency and fairness
- Review the timeliness of decisions and implementation
- Report findings to the Academic Board, SMT and Audit & Risk Committee

TEC will ensure that findings from the annual review are acted upon through the development plan, monitored by the Academic Board. Outcomes of the review will be shared with student representatives to support transparency and student engagement in quality enhancement.

Appendix A Special Educational Needs and Disabilities

SEND Category	Conditions Included	Details
Specific Learning Difficulties (SpLDs) <i>(Learning Difficulties)</i>	Dyslexia; Dyspraxia / DCD; Dyscalculia; Dysgraphia; ADHD/ADD; Auditory Processing Disorder; Visual Processing Disorder	These conditions affect reading, writing, processing, organisation, memory, or attention. Students may require adjustments to teaching, assessment, and study skills support.
Neurodevelopmental Conditions <i>(SEND)</i>	Autism Spectrum Condition; Asperger's (legacy term); Social Communication Disorder; PDA	Students may require structured communication, predictable routines, sensory considerations, and tailored support.
Mental Health Conditions <i>(SEND)</i>	Anxiety disorders; Depression; Bipolar disorder; OCD; PTSD; Eating disorders; Personality disorders; Psychosis	These conditions may fluctuate. Students may require flexible deadlines, wellbeing support, safe-space adjustments, and tailored assessment arrangements.
Sensory Impairments <i>(SEND)</i>	Visual impairment; Hearing impairment; Deafblindness (can be partially hearing and partially sighted)	Students may require accessible materials, interpreters, assistive technology, and alternative formats.
Physical Disabilities & Mobility Impairments <i>(SEND)</i>	Cerebral palsy; Muscular dystrophy; Spinal injuries; Chronic back/joint conditions; Amputations; Mobility-aid users	Students may require physical access adjustments, timetable flexibility, adapted equipment, and evacuation plans.
Long-Term Medical Conditions <i>(SEND)</i>	Diabetes; Epilepsy; Asthma; Crohn's; Ulcerative colitis; IBD; CFS/ME; Fibromyalgia; Heart conditions; Sickle cell; Haemophilia; Chronic migraines; Long Covid	Students may require medical management plans, rest breaks, flexible attendance, and exam adjustments.
Automatically Protected Conditions <i>(SEND)</i>	Cancer; HIV; Multiple sclerosis	These conditions are treated as disabilities from diagnosis. Students may require immediate and ongoing reasonable adjustments.
Speech, Language & Communication Needs (SLCN) <i>(SEND)</i>	Stammering; Selective mutism; Expressive/receptive language disorders	Students may require communication adjustments, alternative participation methods, and additional processing time.
Developmental & Cognitive Disabilities <i>(SEND)</i>	Learning disabilities (mild–severe); Global developmental delay; Intellectual disabilities; Down's syndrome	Students may require simplified materials, tailored learning support, and supported assessment arrangements.
Temporary Impairments <i>(SEND if substantial)</i>	Broken limbs; Post-operative recovery; Concussion; Short-term mental health crises; Pregnancy-related illness	Students may require short-term adjustments such as extensions, alternative formats, or adapted assessment arrangements.

Appendix B Access Arrangements

Access arrangements usually approved by awarding bodies and organisations	Details and examples
Extra time & breaks	SEND students may be granted extra time to submit an assignment or to complete an exam. They may also be permitted to take breaks during an exam if their conditions require it.
Assistive Technology	SEND students may require screen reader, speech-to-text, word processor or other specialist software
Modified papers	SEND students who visually impaired may require large print, Braille, coloured paper or in some cases simplified language if permitted
Room requirements	SEND students may require their own room to complete an assessment or exam. They may need a room on the ground floor or close to amenities.